Exhibit Tab Cover Page

`EXHIBIT LABEL`

`Exhibit C-1`

`SECTION`

`Housing duty appendix`

`SHORT TITLE`

`Housing duty appendix table`

`SOURCE FILE`

`/home/barberb/HACC/Collateral Estoppel/drafts/housing_duty_appendix_table_2026-04-09.md`

`STATUS`

`True copy`

`NOTES`

`Compact appendix grid used to summarize HACC duties, Quantum's narrower role, fact anchors, issue theories, and narrow relief.`

Exhibit Cover Page

`EXHIBIT LABEL`

`Exhibit C-1`

`SHORT TITLE`

`Housing duty appendix table`

`SOURCE FILE`

`/home/barberb/HACC/Collateral Estoppel/drafts/housing_duty_appendix_table_2026-04-09.md`

`RELIED ON BY`

1. [response_to_eviction_motion_and_cross_motion_for_injunctive_relief.md](/home/barberb/HACC/workspace/response_to_eviction_motion_and_cross_motion_for_injunctive_relief.md)
2. [memorandum_in_support_of_response_to_eviction_and_cross_motion.md](/home/barberb/HACC/workspace/memorandum_in_support_of_response_to_eviction_and_cross_motion.md)
3. [joint_motion_for_preliminary_injunction_hacc_quantum.md](/home/barberb/HACC/workspace/joint_motion_for_preliminary_injunction_hacc_quantum.md)
4. [joint_memorandum_in_support_of_preliminary_injunction_hacc_quantum.md](/home/barberb/HACC/workspace/joint_memorandum_in_support_of_preliminary_injunction_hacc_quantum.md)

`PROPOSITION(S) THIS EXHIBIT IS OFFERED TO SUPPORT`

1. A compact, filing-safe grid can state the current HACC and Quantum duty structure without overstating the present record.
2. The strongest current housing theory is source-linked, deontically narrowed, and matched to limited relief.

`AUTHENTICITY / FOUNDATION NOTE`

`Use as a repository-preserved appendix table prepared from the current duty, fact, and relief mapping work.`

`LIMITATION NOTE`

`This is a summary table rather than the underlying primary housing records, and it should be used as a compact map rather than as independent proof of each underlying event.`

Appendix Table: HACC And Quantum Housing Duties

This appendix condenses the current housing-duty encoding into a filing-use table.

Table

Actor	Legal / Program Source	Key Fact Anchor	Encoded Duty / Prohibition	Current Issue Theory	Narrow Relief Supported
`HACC`	`42 U.S.C. § 1437p`; `24 C.F.R. § 970.21`	Hillside redevelopment / relocation record	`O(HACC, provide displacement notice)`; `O(HACC, provide comparable housing or replacement-housing path)`; `O(HACC, provide relocation assistance and counseling)`; `F(HACC, treat displacement as complete before actual relocation)`	HACC pressed toward possession while relocation remained unresolved	deny or abate possession as premature; require relocation status and completion steps
`HACC`	Administrative Plan; Blossom page	Hillside RAD/PBV structure; HACC PBV waitlist; relocation priority groups	`O(HACC, administer the Hillside PBV / RAD replacement-housing track)`; `F(HACC, treat project-side replacement housing as wholly unstructured private discretion)`	HACC described a PBV-administered priority track, then later acted as if no administrable track existed	require written PBV / replacement-housing status; prevent HACC from disclaiming the track it adopted
`HACC`	January 8, 2026 notice; March 26, 2026 options email	Blossom-or-TPV path; later three-option path with April 30 deadline	`O(HACC, administer the relocation options it directed the household to use)`; `F(HACC, convert its own unresolved option administration into household default)`; `P(household, pursue the HACC-directed tracks while active)`	HACC kept changing and extending structured options while later treating noncompletion as tenant-caused	written status order; preserve the path; no abandonment finding based on HACC's own unfinished administration
`HACC`	`42 U.S.C. § 1437d(k)`; `24 C.F.R. § 982.555`	lease-composition reversals; assistance-related changes	`O(HACC, provide lawful notice and hearing process for covered adverse actions)`; `F(HACC, rely on unexplained covered adverse actions without required notice / review)`	HACC changed housing status and channels in ways that appear to have hearing consequences	require hearing-path identification and status clarification
`HACC`	`24 C.F.R. § 5.2007(c)`; `24 C.F.R. § 5.2009`; `34 U.S.C. § 12491(b)(3)(C)(i)`	attempted Multnomah port; protection-order context; Waterleaf path	`O(HACC, maintain and use an emergency-transfer framework lawfully)`; `O(HACC, protect confidentiality)`; `F(HACC, disregard safety context in transfer decisions)`	transfer path was opened in principle but not coherently administered to completion	require lawful, coherent transfer administration; confidentiality; status clarity
`HACC` and `Quantum`	`42 U.S.C. § 3604(f)(2)`; `42 U.S.C. § 3604(f)(3)(B)`; `24 C.F.R. § 100.204`; `42 U.S.C. § 3617`; `24 C.F.R. § 100.400`	disability / live-in aide / service-animal / nonprocessing record	`O(HACC and Quantum, avoid discrimination in housing services and terms)`; `O(HACC and Quantum, provide reasonable accommodation where required)`; `F(HACC and Quantum, interfere with or retaliate against protected housing-rights activity)`	application and relocation handling may have been burdened by discriminatory or interfering treatment	no-interference order; preserve accommodation and application paths; status-quo relief
`Quantum`	Administrative Plan; HACC packet non-forwarding acknowledgment	Hillside Manor leasing-office intake path; packet-routing failure	`O(Quantum, if it received the packet, preserve and properly route it)`; `F(Quantum, lose, block, or discriminatorily mishandle the intake path it controlled)`; `O(Quantum, if acting in the PBV/RAD chain, administer intake consistently with that role)`	Quantum appears to have been inside the intake chain and the record supports a routing failure	preserve documents; identify intake handling; process or reprocess the path nondiscriminatorily
project-side owner / manager	Administrative Plan hearing-before-eviction language	Hillside Manor as RAD/PBV project; Quantum named as property manager			

| `O(project-side owner/manager, provide opportunity for informal hearing before eviction in the RAD/PBV setting)` | project-side eviction should not be treated as ordinary private-market eviction | insist on hearing-path identification; challenge possession as incomplete / premature in project setting |
| packet-wide limitation | Administrative Plan references; public procurement listings; missing executed agreements | HAP / RAD HAP / management role referenced but not fully produced | `P(packet, rely on statute, regulation, plan, and public materials now)`; `F(packet, overstate missing executed agreements as if already in evidence)` | HACC duties are strongly grounded now; Quantum's role is narrower until contracts are produced | use law-first and plan-first theories now; reserve stronger contract-duty arguments for later production |

Best Use

Use this appendix when a motion or bench note needs one compact source showing:

1. which duties run directly to `HACC`;
2. which duties are narrower and project-side as to `Quantum`;
3. what factual anchors currently support each duty theory; and
4. what narrow relief the present record actually supports.

Companion Sources

- [housing_duties_fact_law_encoding_2026-04-09.md](/home/barberb/HACC/Collateral%20Estoppel/evidence_notes/housing_duties_fact_law_encoding_2026-04-09.md)
- [housing_duties_fact_law_encoding_2026-04-09.json](/home/barberb/HACC/Collateral%20Estoppel/evidence_notes/housing_duties_fact_law_encoding_2026-04-09.json)
- [law_first_hacc_quantum_duty_memo_2026-04-09.md](/home/barberb/HACC/Collateral%20Estoppel/evidence_notes/law_first_hacc_quantum_duty_memo_2026-04-09.md)

Exhibit Tab Cover Page

`EXHIBIT LABEL`

`Exhibit C-2`

`SECTION`

`Housing duty appendix`

`SHORT TITLE`

`Housing duty fact-law encoding`

`SOURCE FILE`

`/home/barberb/HACC/Collateral Estoppel/evidence_notes/housing_duties_fact_law_encoding_2026-04-09.md`

`STATUS`

`True copy`

`NOTES`

`Full duty-encoding note linking legal source, factual anchor, deontic rule, issue theory, and narrow remedy.`

Exhibit Cover Page

`EXHIBIT LABEL`

`Exhibit C-2`

`SHORT TITLE`

`Housing duty fact-law encoding`

`SOURCE FILE`

`/home/barberb/HACC/Collateral Estoppel/evidence_notes/housing_duties_fact_law_encoding_2026-04-09.md`

`RELIED ON BY`

1. [response_to_eviction_motion_and_cross_motion_for_injunctive_relief.md](/home/barberb/HACC/workspace/response_to_eviction_motion_and_cross_motion_for_injunctive_relief.md)
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3. [joint_motion_for_preliminary_injunction_hacc_quantum.md](/home/barberb/HACC/workspace/joint_motion_for_preliminary_injunction_hacc_quantum.md)
4. [joint_memorandum_in_support_of_preliminary_injunction_hacc_quantum.md](/home/barberb/HACC/workspace/joint_memorandum_in_support_of_preliminary_injunction_hacc_quantum.md)

`PROPOSITION(S) THIS EXHIBIT IS OFFERED TO SUPPORT`

1. The housing theories can be expressed in a deontically disciplined way by separating obligations, prohibitions, permissions, fact anchors, and narrow remedies.
2. The current record supports stronger direct-duty showings against HACC than against Quantum.

`AUTHENTICITY / FOUNDATION NOTE`

`Use as the repository-preserved full-text encoding note generated from the current housing duty review.`

`LIMITATION NOTE`

`This encoding note is analytical and source-linked, but it is still a synthesis document rather than a substitute for the primary exhibits it references.`

Housing Duties Fact-Law Encoding

This note encodes the current HACC / Quantum duty picture in a form that can be mapped directly into motions for relief.

It is designed to keep the packet disciplined by separating:

1. the legal source;
2. the factual source;
3. the exact deontic rule;
4. the current issue or breach theory; and
5. the narrow remedy presently supported.

Key

- `O(actor, act)` = obligation / duty
- `F(actor, act)` = prohibition
- `P(actor, act)` = permission

1. HACC: Section 18 displacement duties

- Actor: `HACC`
- Legal source:
  - `42 U.S.C. § 1437p`
  - `24 C.F.R. § 970.21`
- Factual anchors:
  - Hillside Manor redevelopment / RAD / repositioning materials
  - HACC Hillside public page
  - HACC Blossom / relocation materials
- Deontic encoding:
  - `O(HACC, provide displacement notice)`
  - `O(HACC, provide comparable housing or comparable replacement-housing path)`
  - `O(HACC, provide actual and reasonable relocation assistance)`
  - `O(HACC, provide counseling as part of relocation)`
  - `F(HACC, treat displacement as complete before actual relocation)`
- Current issue theory:
  - HACC kept the household in an unresolved relocation process while pressing toward possession / default.
- Narrow relief supported:
  - interim relief preserving status quo
  - denial or abatement of possession as premature
  - order requiring written relocation status and completion steps
- Main motion use:
  - eviction response
  - injunction papers

2. HACC: PBV / RAD waiting-list and lease-up administration

- Actor: `HACC`
- Legal / plan source:
  - HACC Administrative Plan
  - Hillside Manor RAD/PBV project listing
  - HACC Blossom page
- Factual anchors:
  - Administrative Plan naming Hillside Manor and Quantum
  - Blossom page saying applications are processed through HACC's PBV waitlist
  - priority groups for Hillside relocation households
- Deontic encoding:
  - `O(HACC, administer separate waiting-list / PBV structure for Hillside RAD project)`
  - `O(HACC, administer Hillside relocation households within the replacement-housing priority structure it adopted)`
  - `F(HACC, treat project-side replacement housing as wholly unstructured private discretion)`

- Current issue theory:
  - HACC described the path as PBV-administered and priority-based, but the household was later treated as if it had no administrable track.
- Narrow relief supported:
  - order requiring written status of PBV / replacement-housing track
  - order preventing HACC from disclaiming responsibility for the track it adopted
- Main motion use:
  - injunction papers
  - eviction response

3. HACC: undertaken dual-track and three-option relocation administration

- Actor: `HACC`
- Source:
  - January 8, 2026 Blossom / TPV notice
  - March 26, 2026 three-option email
- Factual anchors:
  - HACC told the household to choose Blossom or TPV
  - later HACC gave three written options and required move by April 30
- Deontic encoding:
  - `O(HACC, administer the relocation options it directed the household to use)`
  - `F(HACC, convert its own unresolved option administration into household default)`
  - `P(household, pursue the HACC-directed relocation tracks while they remain active)`
- Current issue theory:
  - HACC kept changing and extending structured options while later treating noncompletion as if it were solely tenant-caused.
- Narrow relief supported:
  - written status order
  - injunction against treating the unresolved track as abandonment
  - specific performance style relief keyed to administration, not guaranteed outcome
- Main motion use:
  - eviction response
  - injunction papers

4. HACC: hearing / review duties for covered adverse actions

- Actor: `HACC`
- Legal source:
  - `42 U.S.C. § 1437d(k)`
  - `24 C.F.R. § 982.555`
- Factual anchors:
  - lease-composition reversals
  - voucher / transfer / assistance-related changes
  - HACC internal-review and adverse-action communications
- Deontic encoding:
  - `O(HACC, provide lawful notice and hearing process for covered adverse actions)`
  - `F(HACC, rely on unexplained covered adverse actions without the required notice / review structure)`
- Current issue theory:
  - HACC changed housing status and channels in ways that appear to have hearing and notice consequences.
- Narrow relief supported:
  - require HACC to identify hearing path
  - require status clarification before relying on the adverse action
- Main motion use:
  - eviction response
  - injunction papers

5. HACC: VAWA emergency-transfer and confidentiality duties

- Actor: `HACC`
- Legal source:
  - `24 C.F.R. § 5.2007(c)`
  - `24 C.F.R. § 5.2009`
  - `34 U.S.C. § 12491(b)(3)(C)(i)` for protection-order context
- Factual anchors:
  - attempted port to Multnomah County
  - protection-order setting
  - Home Forward / Brighthaven / Waterleaf path
- Deontic encoding:
  - `O(HACC, maintain and use an emergency-transfer framework lawfully)`
  - `O(HACC, protect confidentiality in the transfer context)`
  - `F(HACC, disregard protection-order-linked safety context when administering access / transfer decisions)`
- Current issue theory:
  - the transfer path was opened in principle but not coherently administered to completion.
- Narrow relief supported:
  - require lawful non-drift administration
  - require confidentiality and status clarity
  - avoid overclaiming a guaranteed port completion deadline
- Main motion use:
  - injunction papers
  - declaration support

6. HACC and Quantum: FHA accommodation and anti-interference duties

- Actor:
  - `HACC`
  - `Quantum`
- Legal source:
  - `42 U.S.C. § 3604(f)(2)`
  - `42 U.S.C. § 3604(f)(3)(B)`
  - `24 C.F.R. § 100.204`
  - `42 U.S.C. § 3617`
  - `24 C.F.R. § 100.400`
- Factual anchors:
  - disability / live-in aide / service-animal / accessibility setting
  - complaints about nonprocessing and interference
  - relocation / application handling failures
- Deontic encoding:
  - `O(HACC and Quantum, avoid discrimination in housing services and terms)`
  - `O(HACC and Quantum, provide reasonable accommodation where required)`
  - `F(HACC and Quantum, interfere with or retaliate against protected housing-rights activity)`
- Current issue theory:
  - application and relocation handling may have been burdened by discriminatory or interfering treatment.
- Narrow relief supported:
  - no-interference order
  - preserve and process accommodation and application paths
  - status-quo relief
- Main motion use:
  - injunction papers
  - civil-rights briefing

7. Quantum: project-side intake / forwarding / packet-handling role

- Actor: `Quantum`
- Source:
  - HACC Administrative Plan identifying Quantum as Hillside Manor property manager

  - HACC acknowledgment that a packet had been left with Quantum staff and not forwarded
  - project-side Blossom / Hillside / Parkside materials
- Factual anchors:
  - Hillside Manor leasing office intake path
  - non-forwarding admission
  - Parkside Heights / Blossom / Hillside overlap theory
- Deontic encoding:
  - `O(Quantum, if it received the relocation/application packet, preserve and properly route it)`
  - `F(Quantum, lose, block, or discriminatorily mishandle the intake path it controlled)`
  - `O(Quantum, if acting as project-side property manager in the PBV/RAD chain, administer intake consistently with that role)`
- Current issue theory:
  - Quantum appears to have been inside the intake chain and the record supports a packet-routing failure.
- Narrow relief supported:
  - preserve documents
  - identify intake handling
  - process or reprocess application path nondiscriminatorily
  - avoid overstating this as direct Section 18 liability identical to HACC
- Main motion use:
  - injunction papers
  - joinder / nonprocessing theories

8. Project-side owner / manager: hearing-before-eviction in RAD/PBV context

- Actor:
  - project-side owner / manager
  - potentially Quantum to the extent it acted in that role
- Source:
  - HACC Administrative Plan, owner responsibilities and informal hearing before eviction language
- Factual anchors:
  - Hillside Manor as a RAD/PBV project
  - Quantum as named property manager
- Deontic encoding:
  - `O(project-side owner/manager, provide opportunity for informal hearing before eviction in the RAD/PBV setting)`
- Current issue theory:
  - the project-side eviction path should not be treated as ordinary private-market eviction without the hearing structure HACC's own plan describes.
- Narrow relief supported:
  - insist on hearing-path identification
  - challenge possession proceeding as incomplete / premature in the project setting
- Main motion use:
  - eviction response

9. Contract-record limitation

- Actor:
  - `HACC`
  - `Quantum`
- Source:
  - Administrative Plan references to HAP / RAD HAP / management role
  - public procurement listings
  - absence of executed texts in current repo
- Deontic encoding:
  - `P(packet, rely on statute, regulation, plan, and public materials now)`
  - `F(packet, overstate missing executed agreements as if already in evidence)`
- Current issue theory:
  - HACC duties are already strongly grounded; Quantum's role is grounded more

narrowly until executed contracts are produced.
- Narrow relief supported:
  - use law-first and plan-first theories now
  - reserve stronger contract-duty arguments for later production
- Main motion use:
  - all housing motions

10. Motion mapping summary

Eviction response / cross-motion

- Use strongly:
  - 1
  - 2
  - 3
  - 4
  - 8
- Use carefully:
  - 5
  - 6
  - 7

Preliminary injunction / housing-specific relief

- Use strongly:
  - 1
  - 2
  - 3
  - 5
  - 6
  - 7
- Use carefully:
  - 4
  - 8

Probate scope / objection papers

- Use strongly only as overlap / causation background:
  - 1
  - 3
  - 5
  - 7
- Do not overuse:
  - direct contract-duty arguments against Quantum
  - merits-heavy Section 18 theory better suited to housing forums

Exhibit Tab Cover Page

`EXHIBIT LABEL`

`Exhibit C-3`

`SECTION`

`Housing duty appendix`

`SHORT TITLE`

`Law-first HACC / Quantum duty memo`

`SOURCE FILE`

`/home/barberb/HACC/Collateral Estoppel/evidence_notes/law_first_hacc_quantum_duty_memo_2026-04-09.md`

`STATUS`

`True copy`

`NOTES`

`Narrative law-first memo explaining direct HACC duties, Quantum's narrower intake role, and the missing-contract-record limitation.`

Exhibit Cover Page

`EXHIBIT LABEL`

`Exhibit C-3`

`SHORT TITLE`

`Law-first HACC / Quantum duty memo`

`SOURCE FILE`

`/home/barberb/HACC/Collateral Estoppel/evidence_notes/law_first_hacc_quantum_duty_memo_2026-04-09.md`

`RELIED ON BY`

1. [memorandum_in_support_of_response_to_eviction_and_cross_motion.md](/home/barberb/HACC/workspace/memorandum_in_support_of_response_to_eviction_and_cross_motion.md)
2. [joint_memorandum_in_support_of_preliminary_injunction_hacc_quantum.md](/home/barberb/HACC/workspace/joint_memorandum_in_support_of_preliminary_injunction_hacc_quantum.md)
3. [response_to_eviction_motion_and_cross_motion_for_injunctive_relief.md](/home/barberb/HACC/workspace/response_to_eviction_motion_and_cross_motion_for_injunctive_relief.md) as narrative support
4. [joint_motion_for_preliminary_injunction_hacc_quantum.md](/home/barberb/HACC/workspace/joint_motion_for_preliminary_injunction_hacc_quantum.md) as narrative support

`PROPOSITION(S) THIS EXHIBIT IS OFFERED TO SUPPORT`

1. HACC is the direct bearer of the strongest statutory and program-administration duties in the housing dispute.
2. Quantum's current record-supported role is narrower and tied primarily to intake, forwarding, handling, and non-obstruction rather than full HACC-equivalent relocation duties.
3. Missing project agreements still limit how far the present contract-duty theory can go.

`AUTHENTICITY / FOUNDATION NOTE`

`Use as the repository-preserved narrative memo created to explain the current law-first duty structure.`

`LIMITATION NOTE`

`This memo is a source-backed narrative synthesis and should not be treated as a replacement for the underlying notices, emails, plans, and project records.`

Law-First Duty Memo Re HACC And Quantum Residential

This memo is designed for filing use. It states the strongest current duty structure in the proper order:

1. duties imposed directly by law;
2. duties adopted in HACC's own program documents;
3. the narrower project-side role currently shown for Quantum Residential; and
4. the present limits of the contract record.

It is intended to keep the packet grounded in source-backed duty language before turning to later emails, promises, or breach inferences.

Companion encoded mapping:

- [housing_duties_fact_law_encoding_2026-04-09.md](/home/barberb/HACC/Collateral%20Estoppel/evidence_notes/housing_duties_fact_law_encoding_2026-04-09.md)
- [housing_duties_fact_law_encoding_2026-04-09.json](/home/barberb/HACC/Collateral%20Estoppel/evidence_notes/housing_duties_fact_law_encoding_2026-04-09.json)

I. Core framing

The strongest current source-backed position is not that every disputed housing wrong arose from an informal promise by email. The stronger position is that:

- federal housing law imposed direct relocation, hearing, VAWA, and fair-housing duties on Housing Authority of Clackamas County (`HACC`);
- HACC's own Administrative Plan and public lease-up materials adopted project-specific PBV/RAD and relocation-processing obligations for the Hillside Manor / Blossom path;
- HACC's own records place Quantum Residential Property Management, L.P. (`Quantum`) inside that intake-and-processing chain as the project-side participant or property-management actor; and
- the later email record is best used to show nonperformance, breakdown, delay, or breach of those already-existing duties, rather than as the original source of duty itself.

II. HACC duties imposed directly by law

A. Section 18 relocation duties

The strongest direct law-first duties run to HACC under Section 18 and HUD's implementing regulation.

Official sources:

- `42 U.S.C. § 1437p`
- `24 C.F.R. § 970.21`

Those sources support the following obligations in substance:

- HACC had to provide the required displacement notice.
- HACC had to provide or arrange comparable housing.
- HACC had to provide actual and reasonable relocation assistance, including moving-expense support.
- HACC had to provide counseling as part of the displacement process.
- HACC could not treat demolition/disposition displacement as complete before actual relocation occurred.

The filing-safe consequence is:

- HACC had real relocation duties as a matter of federal law.
- Those duties are stronger than a mere background policy preference.

- The safer litigation position is that HACC should not obtain possession or treat displacement as complete while those relocation duties remained materially unresolved.

See also:

- [title18_statute_and_contract_source_review.md](/home/barberb/HACC/workspace/title18_statute_and_contract_source_review.md)
- [title18_contract_source_linked_duty_matrix.md](/home/barberb/HACC/workspace/title18_contract_source_linked_duty_matrix.md)
- [deontic_duty_matrix_packet_2026-04-09.md](/home/barberb/HACC/Collateral%20Estoppel/evidence_notes/deontic_duty_matrix_packet_2026-04-09.md)

B. Hearing and adverse-action duties

Official sources:

- `42 U.S.C. § 1437d(k)`
- `24 C.F.R. § 982.555`

These sources support the proposition that HACC had covered notice and hearing duties in connection with housing-assistance disputes and adverse housing-program actions.

The filing-safe consequence is:

- HACC was not free to rely on unexplained reversals, assistance-related changes, or disputed adverse actions without the hearing and notice structure those sources require.

C. VAWA emergency-transfer and confidentiality duties

Official sources:

- `24 C.F.R. § 5.2009`
- `24 C.F.R. § 5.2007(c)`
- `34 U.S.C. § 12491(b)(3)(C)(i)` for protection-order compliance context

These sources support the proposition that HACC had to maintain and use an emergency-transfer framework, protect confidentiality, and handle protection-order-linked access and control issues lawfully.

The filing-safe consequence is:

- HACC had administration duties in the safety-transfer setting.
- The safer formulation is that HACC could not simply let the transfer path drift without coherent administration, status, and confidentiality compliance.
- The stronger formulation is not that federal law guaranteed completion of an out-of-county move by a fixed date unless a source expressly says so.

D. FHA accommodation and anti-interference duties

Official sources:

- `42 U.S.C. § 3604(f)(2)`
- `42 U.S.C. § 3604(f)(3)(B)`
- `24 C.F.R. § 100.204`
- `42 U.S.C. § 3617`
- `24 C.F.R. § 100.400`

These sources support the proposition that HACC had to:

- avoid disability discrimination in housing-related terms and services;
- provide reasonable accommodations where required; and

- avoid coercion, interference, or retaliation against protected housing-rights activity.

The filing-safe consequence is:

- HACC had direct non-discrimination, accommodation, and anti-interference duties independent of the later email sequence.

III. HACC duties adopted in its own plan and program materials

The strongest second layer of grounding is HACC's own adopted program structure, not informal promises.

A. HACC Administrative Plan: project-specific PBV/RAD structure

Source:

- [8ee6f7d1-0c36-48e4-9677-336b95fb9858.txt](/home/barberb/HACC/workspace/evidence/did-key-legacy-temporary-session/local-import/0001_8ee6f7d1-0c36-48e4-9677-336b95fb9858.txt/8ee6f7d1-0c36-48e4-9677-336b95fb9858.txt)

That plan-level record supports the following:

- HACC adopted a RAD/PBV structure for `Hillside Manor`.
- HACC said it would establish and manage separate waiting lists for individual RAD PBV projects.
- The plan identifies `Quantum Residential Property Management` as the property-management company for Hillside Manor.
- The plan references a `06/01/2020 HAP contract` and a `01/01/2021 RAD HAP contract`.

The filing-safe consequence is:

- HACC did not merely administer an abstract housing program.
- HACC adopted a project-specific PBV/RAD structure that it itself described in formal program materials.

B. HACC Administrative Plan: owner responsibilities and hearing before eviction

Same source.

The Administrative Plan states in substance that:

- the owner leases contract units to eligible families referred by HACC or selected from the owner-maintained waiting list;
- the project-side leasing path is governed by the HAP/PBV structure; and
- `The owner must provide an opportunity for an informal hearing before an eviction.`

The filing-safe consequence is:

- HACC's own program materials support a structured lease-up and hearing process in the RAD/PBV setting.
- That is stronger than saying the parties merely hoped for orderly administration.

C. Blossom lease-up page: HACC PBV waitlist and priority groups

Source:

- [Exhibit_Y_Blossom_leaseup_page_excerpt.txt](/home/barberb/HACC/workspace/exhibit-binder-court-ready/exhibits/Exhibit_Y_Blossom_leaseup_page_excerpt.txt)

That record shows that HACC publicly represented:

- Blossom applications would be processed through `HACC's PBV waitlist`; and
- Phase 1 and Phase 2 Hillside relocation households, and other HACC households facing relocation due to repositioning, were priority groups.

The filing-safe consequence is:

- HACC publicly adopted a replacement-housing process that was routed through HACC's PBV administration, not left to wholly unstructured project-side discretion.

D. January 8, 2026 notice: HACC-directed dual-track process

Source:

- [HACC Jan 2026 blossom.pdf](/home/barberb/HACC/evidence/paper%20documents/HACC%20Jan%202026%20blossom.pdf)

That notice shows HACC directed the household to choose between:

- moving forward with Blossom; or
- using a Tenant Protection Voucher.

The filing-safe consequence is:

- once HACC directed the household into those paths, HACC undertook an obligation to administer those channels coherently rather than later characterize the same unresolved process as if it were solely household-caused nonperformance.

E. March 26, 2026 options email: HACC-directed three-option process

Source:

- [message.json](/home/barberb/HACC/evidence/email_imports/starworks5-hcv-reimport-20260404-narrow/0017-RE-HCV-Orientation-a0136cad0c5f44b984403575346f8d34-clackamas.us/message.json)

That record shows HACC later put three options in writing:

- porting to Multnomah County;
- searching independently in Clackamas County using a TPV; and
- assigned PBV unit at Parkside Heights Building B;

while also stating that all options required a move by April 30.

The filing-safe consequence is:

- by that point HACC itself was still treating relocation as an active, unresolved, administered process.
- The safer theory is not that the email alone created a contract from nothing.
- The stronger theory is that the email confirms and operationalizes the already-existing HACC-controlled relocation framework.

IV. Quantum's narrower project-side role

The present record supports a narrower, but still meaningful, duty structure as to Quantum.

A. What the current record solidly shows

The current record shows:

- HACC's Administrative Plan identifies Quantum as the property-management company for Hillside Manor.
- HACC's own later message states that the intake packet had been submitted to Quantum staff at the Hillside Manor leasing office and had not been provided to HACC.
- HACC's public Blossom materials and January 8 notice place the household inside an HACC-directed PBV / replacement-housing path in the same project environment.

Sources:

- [title18_statute_and_contract_source_review.md](/home/barberb/HACC/workspace/title18_statute_and_contract_source_review.md)
- [title18_contract_source_linked_duty_matrix.md](/home/barberb/HACC/workspace/title18_contract_source_linked_duty_matrix.md)
- [polished_memorandum_in_support_of_joinder_quantum.md](/home/barberb/HACC/workspace/polished_memorandum_in_support_of_joinder_quantum.md)

B. Filing-safe duty formulation for Quantum

The strongest present formulation is:

- if Quantum received, controlled, or participated in the intake / forwarding / processing chain HACC used for the replacement-housing path, Quantum had project-side duties not to lose, block, ignore, discriminatorily burden, or otherwise mishandle that path.

That theory is strongest when tied to:

- intake / forwarding / preservation;
- PBV / project-side lease-up participation;
- FHA / Section 1981 nondiscrimination and anti-interference;
- and the management role HACC itself identifies.

C. What should not yet be overstated

The current file does **not** yet justify the strongest possible formulation that:

- Section 18, by itself, directly imposed the full relocation-duty chain on Quantum in the same way it did on HACC.

The safer position is:

- Section 18 duties run directly to HACC as the public housing authority.
- Quantum becomes materially relevant because HACC's own records place Quantum inside the very intake and processing chain through which HACC was carrying out that relocation path.

V. Present contract-record limitation

The current repository appears to show the existence of:

- a HAP contract;
- a RAD HAP contract; and
- a Quantum management role;

but the repository does not yet appear to contain the full executed texts of:

- the signed management agreement;
- the signed HAP contract;
- the ground lease; or
- the full project-side operating agreement.

That matters because:

- HACC's law-based and plan-based duties are already strongly grounded without those missing contracts.
- Quantum's role is already grounded enough for joinder, processing-chain, and nondiscrimination theories.
- But the actual signed agreements would materially strengthen any argument that Quantum separately owed specific forwarding, intake, lease-up, or performance duties by contract.

VI. Filing-safe deontic summary

The strongest current law-first deontic formulation is:

- `O(HACC, perform the Section 18 relocation steps required by statute and regulation).`
- `O(HACC, provide hearing / review process where the federal housing sources require it).`
- `O(HACC, administer VAWA emergency-transfer and confidentiality obligations lawfully).`
- `O(HACC, comply with accommodation and anti-interference duties under the FHA).`
- `O(HACC, administer the PBV/RAD and Blossom replacement-housing path it adopted in its own plan and public materials).`
- `O(HACC, administer the relocation options it itself directed the household to use).`
- `O(Quantum, if it received or controlled the intake path, preserve and handle that path lawfully and nondiscriminatorily as the project-side participant identified by HACC's own records).`

The key caution is:

- use later emails and communications primarily to prove nonperformance, nonforwarding, delay, inconsistent administration, or breach of these already-grounded duties;
- do not make the later emails the primary source of duty where the stronger source is already statute, regulation, Administrative Plan text, or HACC's public PBV/Blossom materials.

VII. Practical filing use

This memo supports the following litigation posture:

- lead with statute and regulation for HACC's direct duties;
- use HACC's Administrative Plan, Blossom lease-up page, and formal notices as the second grounding layer;
- describe Quantum as the documented project-side participant in the intake-and-processing chain;
- use email and timeline materials afterward to show how those duties were not carried out in practice.

Exhibit Tab Cover Page

`EXHIBIT LABEL`

`Exhibit C-4`

`SECTION`

`Housing duty appendix`

`SHORT TITLE`

`Hillside public-source manifest`

`SOURCE FILE`

`/home/barberb/HACC/Collateral Estoppel/evidence_notes/hillside_public_sources_download_manifest_2026-04-09.md`

`STATUS`

`True copy`

`NOTES`

`Public-source preservation note gathering project-role, PBV, RAD, and structure corroboration.`

Exhibit Cover Page

`EXHIBIT LABEL`

`Exhibit C-4`

`SHORT TITLE`

`Hillside public-source manifest`

`SOURCE FILE`

`/home/barberb/HACC/Collateral Estoppel/evidence_notes/hillside_public_sources_download_manifest_2026-04-09.md`

`RELIED ON BY`

1. [memorandum_in_support_of_response_to_eviction_and_cross_motion.md](/home/barberb/HACC/workspace/memorandum_in_support_of_response_to_eviction_and_cross_motion.md)
2. [joint_memorandum_in_support_of_preliminary_injunction_hacc_quantum.md](/home/barberb/HACC/workspace/joint_memorandum_in_support_of_preliminary_injunction_hacc_quantum.md)
3. [joint_motion_for_preliminary_injunction_hacc_quantum.md](/home/barberb/HACC/workspace/joint_motion_for_preliminary_injunction_hacc_quantum.md) as structure support

`PROPOSITION(S) THIS EXHIBIT IS OFFERED TO SUPPORT`

1. Public sources corroborate HACC's developer and program role at Hillside Manor.
2. Public sources corroborate Quantum's property-management role and the PBV / RAD structure relevant to the dispute.

`AUTHENTICITY / FOUNDATION NOTE`

`Use as a repository-preserved public-source download manifest identifying the related preserved source files.`

`LIMITATION NOTE`

`This exhibit preserves public corroboration and source-tracking, but it does not replace the missing executed management, HAP, RAD, or ground-lease agreements.`

Hillside Public Sources Download Manifest

This note identifies the public web sources downloaded on `2026-04-09` while searching for project-side agreement and role evidence concerning HACC, Hillside Manor, Blossom, and Quantum Residential.

Download folder

- [2026-04-09_hillside_public_sources](/home/barberb/HACC/evidence/web_downloads/2026-04-09_hillside_public_sources)

Files preserved

1. [hillside_manor_clackamas_2026-04-09.html](/home/barberb/HACC/evidence/web_downloads/2026-04-09_hillside_public_sources/hillside_manor_clackamas_2026-04-09.html)
2. [hillside_manor_clackamas_2026-04-09.txt](/home/barberb/HACC/evidence/web_downloads/2026-04-09_hillside_public_sources/hillside_manor_clackamas_2026-04-09.txt)
3. [blossom_community_clackamas_2026-04-09.html](/home/barberb/HACC/evidence/web_downloads/2026-04-09_hillside_public_sources/blossom_community_clackamas_2026-04-09.html)
4. [blossom_community_clackamas_2026-04-09.txt](/home/barberb/HACC/evidence/web_downloads/2026-04-09_hillside_public_sources/blossom_community_clackamas_2026-04-09.txt)
5. [hacc_bids_2026-04-09.html](/home/barberb/HACC/evidence/web_downloads/2026-04-09_hillside_public_sources/hacc_bids_2026-04-09.html)
6. [hacc_bids_2026-04-09.txt](/home/barberb/HACC/evidence/web_downloads/2026-04-09_hillside_public_sources/hacc_bids_2026-04-09.txt)
7. [hillside_redevelopment_development_agreement_packet_2026-04-09.pdf](/home/barberb/HACC/evidence/web_downloads/2026-04-09_hillside_public_sources/hillside_redevelopment_development_agreement_packet_2026-04-09.pdf)
8. [hillside_redevelopment_development_agreement_packet_2026-04-09.txt](/home/barberb/HACC/evidence/web_downloads/2026-04-09_hillside_public_sources/hillside_redevelopment_development_agreement_packet_2026-04-09.txt)
9. [quantum_hillside_manor_2026-04-09_retry.html](/home/barberb/HACC/evidence/web_downloads/2026-04-09_hillside_public_sources/quantum_hillside_manor_2026-04-09_retry.html)
10. [quantum_hillside_manor_2026-04-09_retry.txt](/home/barberb/HACC/evidence/web_downloads/2026-04-09_hillside_public_sources/quantum_hillside_manor_2026-04-09_retry.txt)
11. [hdc_hillside_manor_2026-04-09.html](/home/barberb/HACC/evidence/web_downloads/2026-04-09_hdc_sources/hdc_hillside_manor_2026-04-09.html)
12. [hdc_hillside_manor_2026-04-09.txt](/home/barberb/HACC/evidence/web_downloads/2026-04-09_hdc_sources/hdc_hillside_manor_2026-04-09.txt)

Key points preserved

A. Hillside Manor public page

The downloaded Hillside Manor page states in substance that:

- `Developer: Housing Authority of Clackamas County`
- `Property manager: Quantum Residential`
- `Service coordinator: HACC`
- `Construction completion: 2021`

This is useful because it publicly ties:

- HACC to the developer / project-authority role; and
- Quantum to the property-management role.

B. Blossom public page

The downloaded Blossom page states in substance that:

- the building includes `project-based Section 8 rental assistance`;
- applications are processed through `HACC's PBV waitlist`; and
- Hillside relocation households are priority groups.

This is useful because it publicly confirms the PBV waitlist structure and relocation-priority framework that HACC adopted.

C. HACC bids / RFP page

The downloaded bids page includes text reflecting:

- `Request for Proposals Management of Hillside Manor`
- `Intent to Award`

This is useful because it supports the existence of a formal management-procurement path for Hillside Manor even though the executed management agreement itself has not yet been located.

D. Development-agreement packet

The downloaded Clackamas PDF states in substance that:

- HACC was authorized to negotiate and execute a `Development Agreement`;
- the project involved partnership ownership / development documents; and
- the partnership would lease land from HACC through a capitalized `ground lease`.

This is useful because it supports the broader project-governance and ground-lease structure at Hillside even though the executed ground-lease text for the specific Hillside Manor project chain is not yet in the repository.

E. Quantum public property page

The downloaded Quantum page confirms public operation of:

- `Hillside Manor - Quantum Residential`

The first retrieval returned a `Forbidden` stub; the preserved retry with a browser user-agent returned the actual page.

F. HDC project page

The downloaded HDC Hillside Manor page states in substance that:

- HDC worked with `HACC` to convert Hillside Manor's public-housing subsidies to `project-based Section 8 subsidies` through `RAD`;
- the RAD conversion opened the way for `private debt financing` and `LIHTC equity`; and
- a `20-year renewable contract for project-based vouchers` helps preserve affordability.

This is useful because it corroborates, from an outside project participant, the same broader financing and subsidy-conversion structure reflected in HACC's own plan materials.

Present evidentiary use

These sources are best used as:

1. public corroboration of role and project structure;
2. supplemental support for HACC's developer / administrator role and Quantum's management role;
3. evidence that a formal management-procurement and development-document chain exists; and
4. support for later requests, subpoenas, or motions seeking the executed management agreement, HAP contract, RAD use agreement, and ground-lease / control documents; and
5. supplemental corroboration that Hillside Manor's financing and subsidy structure involved RAD conversion, project-based Section 8, private debt, and LIHTC equity.

Important limit

These downloaded public sources still do **not** themselves supply:

- the executed management agreement;
- the executed RAD/PBV HAP contract text; or
- the executed ground lease / project agreement text.

They strengthen the role / structure record, but do not eliminate the need to request or subpoena the executed contracts.

Exhibit Tab Cover Page

`EXHIBIT LABEL`

`Exhibit C-5`

`SECTION`

`Housing duty appendix`

`SHORT TITLE`

`Hillside procurement-trail note`

`SOURCE FILE`

`/home/barberb/HACC/Collateral Estoppel/evidence_notes/hillside_procurement_trail_note_2026-04-09.md`

`STATUS`

`True copy`

`NOTES`

`Procurement-trail note identifying management, financing, and related project-procurement breadcrumbs.`

Exhibit Cover Page

`EXHIBIT LABEL`

`Exhibit C-5`

`SHORT TITLE`

`Hillside procurement-trail note`

`SOURCE FILE`

`/home/barberb/HACC/Collateral Estoppel/evidence_notes/hillside_procurement_trail_note_2026-04-09.md`

`RELIED ON BY`

1. [joint_memorandum_in_support_of_preliminary_injunction_hacc_quantum.md](/home/barberb/HACC/workspace/joint_memorandum_in_support_of_preliminary_injunction_hacc_quantum.md)
2. [memorandum_in_support_of_response_to_eviction_and_cross_motion.md](/home/barberb/HACC/workspace/memorandum_in_support_of_response_to_eviction_and_cross_motion.md) as corroborating project-structure support
3. [joint_motion_for_preliminary_injunction_hacc_quantum.md](/home/barberb/HACC/workspace/joint_motion_for_preliminary_injunction_hacc_quantum.md) as corroborating retrieval posture support

`PROPOSITION(S) THIS EXHIBIT IS OFFERED TO SUPPORT`

1. The missing project-agreement layer is tied to identifiable Hillside procurement titles and dead public UUID links rather than speculation.
2. The repo preserves a concrete trail showing which records should exist even though the public files are no longer easily retrievable.

`AUTHENTICITY / FOUNDATION NOTE`

`Use as a repository-preserved procurement note prepared from public listings and preserved breadcrumbs.`

`LIMITATION NOTE`

`This note identifies the procurement trail and missing-record targets, but it is not itself the executed project-agreement set.`

Hillside Procurement Trail Note

This note preserves the current public procurement trail found on `2026-04-09` for Hillside Manor management, debt / LIHTC financing, and related redevelopment records.

A. Current public listing evidence

The downloaded HACC bids page reflects the following Hillside Manor procurement entries:

1. `Request for Proposals Management of Hillside Manor`
   - dated `1/16/2020`
   - with `Intent to Award` published `2/18/20`

2. `Debt and LIHTC Equity Investor RFP – Hillside Manor`
   - published `5/29/19`
   - with linked materials including:
     - `Financials`
     - `Addendum 1`
     - `Rental Assistance Demonstration Physical Condition Assessment (RPCA)`
     - `Intent to Award`

Sources:

- [hacc_bids_2026-04-09.html](/home/barberb/HACC/evidence/web_downloads/2026-04-09_hillside_public_sources/hacc_bids_2026-04-09.html)
- [hacc_bids_2026-04-09.txt](/home/barberb/HACC/evidence/web_downloads/2026-04-09_hillside_public_sources/hacc_bids_2026-04-09.txt)

B. Public document URLs extracted from the bids page

The bids page currently lists these specific document URLs:

Management of Hillside Manor

- Main RFP:
  - `https://dochub.clackamas.us/documents/drupal/eec0ba5f-4917-4179-b2d4-20cc0eab96f4`
- Intent to Award:
  - `https://dochub.clackamas.us/documents/drupal/850fd824-41c6-4f6b-8d60-04f6d1092e1b`

Debt / LIHTC / RPCA cluster

- Main RFP:
  - `https://dochub.clackamas.us/documents/drupal/2573708d-7fe8-47eb-88b8-44b21d237b72`
- Financials:
  - `https://dochub.clackamas.us/documents/drupal/40087b62-c80e-49d9-81d0-3ae7a8a4e20d`
- Addendum 1:
  - `https://dochub.clackamas.us/documents/drupal/78ec44d8-44d7-4153-bb04-4fe160ed7c91`
- RPCA:
  - `https://dochub.clackamas.us/documents/drupal/748ab3eb-f744-44de-8462-d4dccaa530cc`
- Intent to Award:
  - `https://dochub.clackamas.us/documents/drupal/4bcd3a91-86c3-4e00-9056-48125a37f478`

C. Present public-access problem

On `2026-04-09`, the listed document UUID links did not yield the underlying

procurement files from either:

- `dochub.clackamas.us`; or
- `docs.clackamas.us`

Instead, the tested URLs returned `404` placeholder pages.

That means the public listing survives, but the linked document files do not presently appear retrievable from the open endpoint.

D. What was preserved anyway

The attempted procurement downloads were preserved here:

- [2026-04-09_hillside_procurement_sources](/home/barberb/HACC/evidence/web_downloads/2026-04-09_hillside_procurement_sources)

These files currently preserve the public retrieval failure itself, because the downloaded items are 404 placeholder pages rather than the underlying documents.

That is still useful for record purposes because it shows:

1. the bids page lists the procurement records by title and UUID;
2. the public endpoint for those exact records is no longer yielding the underlying files; and
3. a direct request or subpoena may be necessary even though the listing itself confirms the documents once existed in the public-facing system.

E. Related public corroboration

Independent public pages found during the same search period support the broader Hillside Manor project structure:

- HACC Hillside Manor page:
  - `Developer: Housing Authority of Clackamas County`
  - `Property manager: Quantum Residential`
  - `Construction completion: 2021`
- HDC project page:
  - describes Hillside Manor as a RAD conversion using private debt financing and LIHTC equity

Relevant source already preserved:

- [hillside_public_sources_download_manifest_2026-04-09.md](/home/barberb/HACC/Collateral%20Estoppel/evidence_notes/hillside_public_sources_download_manifest_2026-04-09.md)

F. Filing-safe consequence

The procurement trail now supports the following careful points:

1. HACC publicly listed a formal procurement path for `Management of Hillside Manor`.
2. HACC publicly listed a formal procurement / financing path tied to Hillside Manor debt, LIHTC equity, and RPCA materials.
3. The titles and listing structure help prove that management and financing records existed.
4. The actual procurement documents are not presently retrievable from the public links and should therefore be requested directly from HACC or Quantum rather than assumed to remain publicly downloadable.

Exhibit Tab Cover Page

`EXHIBIT LABEL`

`Exhibit C-6`

`SECTION`

`Housing duty appendix`

`SHORT TITLE`

`Missing project agreements retrieval note`

`SOURCE FILE`

`/home/barberb/HACC/Collateral Estoppel/evidence_notes/missing_project_agreements_retrieval_note_2026-04-09.md`

`STATUS`

`True copy`

`NOTES`

`Retrieval note describing the missing executed project-agreement layer and why it matters to the duty analysis.`

Exhibit Cover Page

`EXHIBIT LABEL`

`Exhibit C-6`

`SHORT TITLE`

`Missing project agreements retrieval note`

`SOURCE FILE`

`/home/barberb/HACC/Collateral Estoppel/evidence_notes/missing_project_agreements_retrieval_note_2026-04-09.md`

`RELIED ON BY`

1. [joint_memorandum_in_support_of_preliminary_injunction_hacc_quantum.md](/home/barberb/HACC/workspace/joint_memorandum_in_support_of_preliminary_injunction_hacc_quantum.md)
2. [memorandum_in_support_of_response_to_eviction_and_cross_motion.md](/home/barberb/HACC/workspace/memorandum_in_support_of_response_to_eviction_and_cross_motion.md)
3. [joint_motion_for_preliminary_injunction_hacc_quantum.md](/home/barberb/HACC/workspace/joint_motion_for_preliminary_injunction_hacc_quantum.md) as limitation support

`PROPOSITION(S) THIS EXHIBIT IS OFFERED TO SUPPORT`

1. The present record has a real contract-record limitation that should narrow how far the filings go as to Quantum and project-governance duties.
2. The missing agreements can be described transparently without overstating what has already been proved.

`AUTHENTICITY / FOUNDATION NOTE`

`Use as the repository-preserved retrieval note explaining what project records are still absent and why they matter.`

`LIMITATION NOTE`

`This exhibit documents the missing-record problem and retrieval posture; it is not itself proof of the missing agreements' final contents.`

Missing Project Agreements Retrieval Note

This note identifies the project-side documents that do not yet appear in the repository in executed form, explains why they matter, and states the narrower factual points already supported by the current record.

A. What The Current Record Already Shows

The current record already supports the following points without the executed contracts themselves:

1. HACC's July 1, 2025 Administrative Plan identifies `Hillside Manor Apartments` as a RAD/PBV project, identifies `Quantum Residential Property Management` as the property management company, and states that the project has:
   - a `06/01/2020 HAP contract`; and
   - a `01/01/2021 RAD HAP contract`.

2. HACC's Administrative Plan also states that RAD conversion projects are subject to a `RAD Use Agreement` and discusses ownership/control arrangements involving:
   - fee ownership;
   - ground leases; and
   - control arrangements retained by HACC or a related public/nonprofit entity.

3. HACC's public Blossom lease-up materials state that Blossom applications are processed through `HACC's PBV waitlist` and that Hillside relocation households are priority groups.

4. The household-specific record already supports that HACC and Quantum were both in the intake / routing / replacement-housing chain.

Those points are presently supported by:

- [8ee6f7d1-0c36-48e4-9677-336b95fb9858.txt](/home/barberb/HACC/hacc_website/knowledge_graph/texts/8ee6f7d1-0c36-48e4-9677-336b95fb9858.txt)
- [Exhibit_Z_HACC_Administrative_Plan_excerpts.txt](/home/barberb/HACC/workspace/exhibit-binder-court-ready/exhibits/Exhibit_Z_HACC_Administrative_Plan_excerpts.txt)
- [blossom-community-apartments](/home/barberb/HACC/blossom-community-apartments)
- [Exhibit_Y_Blossom_leaseup_page_excerpt.txt](/home/barberb/HACC/workspace/exhibit-binder-court-ready/exhibits/Exhibit_Y_Blossom_leaseup_page_excerpt.txt)

B. What Is Still Missing

The repository does not yet appear to contain the full executed text of the following project documents:

1. The `06/01/2020 HAP contract` referenced in the Administrative Plan.
2. The `01/01/2021 RAD HAP contract` referenced in the Administrative Plan.
3. The initial `RAD Use Agreement`.
4. Any executed `management agreement` or property-management services agreement identifying Quantum's role and duties.
5. Any executed `ground lease`, `control agreement`, or equivalent project-governance instrument for Hillside Manor.
6. Any owner-side or project-side agreement showing who had authority over:
   - leasing;
   - intake routing;
   - relocation processing;
   - tenant communications; and
   - preservation of application materials.

C. Why These Missing Documents Matter

These documents would materially strengthen the agreement-side and deontic record because they could clarify:

1. Who the actual contracting parties were.
2. Whether HACC acted as:
   - public housing agency only;
   - contract administrator;
   - owner;
   - related entity; or
   - retained controlling party.
3. Whether Quantum's role was limited to ordinary property management or extended to:
   - intake;
   - eligibility processing;
   - leasing coordination;
   - waitlist administration support; or
   - relocation implementation.
4. What duties were mandatory, discretionary, conditional, or prohibited in the project chain.
5. What preservation, routing, notice, and response obligations existed regarding applications and relocation materials.
6. Whether any contract text expressly incorporated:
   - RAD requirements;
   - PBV requirements;
   - Section 18 replacement-housing obligations;
   - grievance / hearing procedures; or
   - ownership-control restrictions.

D. Filing-Safe Present Position

Until the executed project agreements are produced, the safest present argument is:

1. HACC's duties are strongly grounded by statute, regulation, and HACC's own Administrative Plan and public PBV/RAD materials.
2. Quantum is presently grounded as the documented project-side property-management and intake-path participant in the same HACC-directed chain.
3. The missing executed agreements would materially strengthen, but are not strictly necessary for, the narrower theories that:
   - HACC had direct relocation and program-administration duties; and
   - Quantum participated in the intake / forwarding / processing path that allegedly broke down.

E. Best Retrieval Targets

The cleanest project-document retrieval request should ask HACC and/or Quantum to produce:

1. The fully executed `06/01/2020 HAP contract` for Hillside Manor.
2. The fully executed `01/01/2021 RAD HAP contract` for Hillside Manor.
3. The initial and any amended `RAD Use Agreement` for Hillside Manor.
4. Any `management agreement` between Hillside Manor ownership, HACC, any HACC-related entity, and/or Quantum.
5. Any `ground lease`, `control agreement`, regulatory agreement, or equivalent ownership-control instrument governing Hillside Manor.
6. Any document identifying who was responsible for:
   - application intake;
   - routing of relocation packets;
   - waitlist or PBV processing;
   - leasing decisions;
   - and communication with Hillside relocation households.
7. Any policy, addendum, rider, or exhibit incorporated into those agreements that addresses:
   - PBV;

- RAD;
- Section 18;
- tenant selection;
- grievance / hearing procedures;
- and relocation implementation.

F. Best Use Of This Note

This note is best used to support:

1. a subpoena or document request to HACC;
2. a subpoena or document request to Quantum;
3. a motion to compel or show cause if either side denies possession of the agreements; and
4. careful briefing that distinguishes:
   - what is already firmly supported; from
   - what would become materially stronger if the executed agreements are produced.

Exhibit Tab Cover Page

`EXHIBIT LABEL`

`Exhibit C-7`

`SECTION`

`Housing duty appendix`

`SHORT TITLE`

`HACC Hillside project records request`

`SOURCE FILE`

`/home/barberb/HACC/Collateral Estoppel/drafts/hacc_hillside_project_records_request_2026-04-09.md`

`STATUS`

`Draft request`

`NOTES`

`Targeted records-request draft keyed to Hillside project titles, dates, and preserved UUID breadcrumbs.`

Exhibit Cover Page

`EXHIBIT LABEL`

`Exhibit C-7`

`SHORT TITLE`

`HACC Hillside project records request`

`SOURCE FILE`

`/home/barberb/HACC/Collateral Estoppel/drafts/hacc_hillside_project_records_request_2026-04-09.md`

`RELIED ON BY`

1. [joint_memorandum_in_support_of_preliminary_injunction_hacc_quantum.md](/home/barberb/HACC/workspace/joint_memorandum_in_support_of_preliminary_injunction_hacc_quantum.md) as retrieval-posture support
2. [memorandum_in_support_of_response_to_eviction_and_cross_motion.md](/home/barberb/HACC/workspace/memorandum_in_support_of_response_to_eviction_and_cross_motion.md) as retrieval-posture support
3. [joint_motion_for_preliminary_injunction_hacc_quantum.md](/home/barberb/HACC/workspace/joint_motion_for_preliminary_injunction_hacc_quantum.md) as transparency support regarding missing project records

`PROPOSITION(S) THIS EXHIBIT IS OFFERED TO SUPPORT`

1. The missing project-agreement layer has been targeted with a concrete records request keyed to specific project titles, dates, and UUID breadcrumbs.
2. The current filings are transparent about what still needs to be obtained from HACC rather than pretending those records are already in hand.

`AUTHENTICITY / FOUNDATION NOTE`

`Use as the repository-preserved draft records request for Hillside project agreements and related role-allocation records.`

`LIMITATION NOTE`

`This is a retrieval draft, not the requested project records themselves, and it should be used to show targeted pursuit of the missing agreements rather than as proof of their contents.`

HACC Hillside Project Records Request

This draft is a targeted records-request version of the Hillside Manor project-agreement demand. It is designed for adaptation into a public-records request, ORCP 55 subpoena attachment, or motion-to-compel exhibit.

Request objective

Please produce records sufficient to identify the project-side agreements, management structure, and intake / relocation responsibilities governing `Hillside Manor`, `Blossom`, and related RAD / PBV replacement-housing administration for Hillside relocation households.

Why this request is specific

Public HACC materials already identify `Hillside Manor Apartments` as a RAD / PBV project, identify `Quantum Residential Property Management` as the property manager, and reference:

1. a `06/01/2020 HAP contract`;
2. a `01/01/2021 RAD HAP contract`;
3. a `RAD Use Agreement`;
4. a formal public procurement entry titled `Request for Proposals Management of Hillside Manor`, dated `1/16/2020`, with `Intent to Award` published `2/18/20`; and
5. a public procurement entry titled `Debt and LIHTC Equity Investor RFP Hillside Manor`, published `5/29/19`, including:
   - the RFP;
   - `Financials`;
   - `Addendum 1`;
   - `Rental Assistance Demonstration Physical Condition Assessment (RPCA)`;
   - proposal evaluations;
   - recommendation memoranda; and
   - `Intent to Award`.
8. All records sufficient to identify the ownership and control structure for Hillside Manor after RAD conversion, including:
   - the owner;
   - any HACC-related entity;
   - any tax-credit partnership;
   - the management entity; and
   - any party responsible for PBV contract administration.
9. All records sufficient to identify which party or parties were

responsible for:
  - application intake;
  - routing of relocation packets;
  - PBV waitlist or project-based voucher processing;
  - leasing coordination;
  - tenant communications; and
  - preservation of application materials for Hillside relocation households.

10. All policies, riders, exhibits, attachments, or incorporated documents addressing:
  - RAD requirements;
  - PBV requirements;
  - Section 18 replacement housing;
  - grievance / hearing procedures;
  - relocation implementation; and
  - tenant selection / priority rules for Hillside relocation households.

11. All records sufficient to identify whether `Blossom`, `Hillside Manor`, and `Parkside Heights` were part of the same or overlapping Hillside Manor redevelopment / relocation implementation chain.

12. All records sufficient to identify whether Quantum Residential, Hillside Manor staff, Blossom staff, or Parkside Heights staff received, routed, held, or failed to forward relocation or application packets for Jane Cortez / Benjamin Barber.

Relevant dates

- January 1, 2019 through the date of production

Relevant persons and entities

- Jane Kay Cortez
- Benjamin Barber
- Housing Authority of Clackamas County
- Clackamas County Housing & Community Development Division
- Quantum Residential
- Hillside Manor Apartments
- Blossom / Community Apartments
- Parkside Heights
- any Hillside Manor ownership entity, RAD ownership entity, LIHTC partnership, or HACC-related affiliate

Metadata and production notes

1. Produce electronically stored information in native format where reasonably available, including metadata showing creation date, modification date, author, approver, routing history, linked attachments, and document titles.
2. If any responsive record is withheld, identify it by date, title, custodian, general subject matter, and basis for withholding.
3. If HACC contends any responsive agreement is held only by another project-side entity, identify that entity and the specific agreement not produced.

Best supporting sources

- [law_first_hacc_quantum_duty_memo_2026-04-09.md](/home/barberb/HACC/Collateral%20Estoppel/evidence_notes/law_first_hacc_quantum_duty_memo_2026-04-09.md)
- [missing_project_agreements_retrieval_note_2026-04-09.md](/home/barberb/HACC/Collateral%20Estoppel/evidence_notes/missing_project_agreements_retrieval_note_2026-04-09.md)
- [hillside_procurement_trail_note_2026-04-09.md](/home/barberb/HACC/Collateral%20Estoppel/evidence_notes/hillside_procurement_trail_note_2026-04-09.md)
- [hillside_public_sources_download_manifest_2026-04-09.md](/home/barberb/HACC/Collateral%20Estoppel/evidence_notes/hillside_public_sources_download_manifest_2026-04-09.md)

Best narrowing sentence

This request does not seek every housing record in the file. It seeks the specific project-side agreements, procurement records, and role-allocation materials needed to identify who bore responsibility for Hillside relocation intake, leasing, packet routing, and PBV / RAD administration.